

Whistleblower protection

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Report to the appeal body, not your boss or council.
- You can report without giving your name.
- Nobody can fire you, evict you, or cut your program for a good faith report.
- If something bad happens to you within 180 days, the decision maker has to prove it wasn't payback.

Why this draft is here

People who see a problem stay quiet when speaking up could cost them a job or a house. This code gives them a safe channel and puts the burden on the decision maker.

1. Purpose

- 1.1 This code is how a member, employee, or contractor reports a breach of any code in this set without handing the report to the person it is about.
- 1.2 Reports go to the appeal body. No one has to ask the chief's permission first. A rule that requires that is void.

2. How to report

- 2.1 A report may be written or spoken. The appeal body writes down a spoken report within 2 days, keeps the notes or recording, and gives the reporter a file number.
- 2.2 Anonymous reports are allowed. The appeal body opens a file if the report gives a date, a section, and a fact that can be checked. A report with no fact in it may be closed within 15 days, with a one line reason in the file.
- 2.3 If a report describes something that may be a crime, the appeal body refers that part to the police within 2 days. The internal file continues on questions of office, pay, and repayment.
- 2.4 The appeal body tells the reporter, if it knows how to reach them, whether the file is open, referred, or closed, within 30 days. It decides any breach of this set within a further 45 days, in writing.
- 2.5 The appeal body keeps the reporter's identity confidential. It may share it only with the reporter's written consent, or if a court orders it.

3. No reprisal

- 3.1 No one on council, no employee, and no contractor may fire, evict, cut a program for, or threaten a person because they made a good faith report or gave evidence to the appeal body.

- 3.2 A firing, eviction, or program cut within 180 days after a report is presumed to be reprisal unless the decision maker files written reasons with the appeal body within 10 days of the decision. The reasons must show the same rule would apply to someone who had not reported.
- 3.3 When the appeal body receives a reprisal complaint, the decision complained about is paused that day. A benefit that was cut is restored within 7 days.
- 3.4 A person found to have taken reprisal may not make that decision again. A second finding removes them from office or employment, 7 days after the written decision unless a court stays it.

4. What is published

- 4.1 The public log shows the file number, the section, the outcome, and the date. It does not publish the story behind a report or anyone's name.
- 4.2 A person who makes a report they know is false may not open another file for 1 year. The appeal body posts that finding without repeating the false content.

5. Changing this code

- 5.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 5.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 5.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 5.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

6. Review and coming into force

- 6.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 6.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 6.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 6.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 6.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.